FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Bronx

DOWNEY SAVINGS AND LOAN ASSOCIATION, F.A

Plaintiff,

-against-

JUAN MUNOZ,

Defendant.

Index No. 380878/2008E

MORTGAGED PROPERTY: 1224 Vyse Ave

COUNTY:

SBL #: Block 2278 and Lot 36

Sale Date: 2/2/26

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 431,494.97
2. Adjusted Judgment Amount (Upset Price): $ 875000
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 875001
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 1
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $

Referee Name: Leticia Arzu, Esq, Telephone:

Address: 200 Mamaroneck Ave, Ste 500, White Plains, NY 10601

Email: larzu@bozemanlawfirm.com Signature/Date: Leticia Arzu

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

DOWNEY SAVINGS c/o
Friedman Vartolo LLP
85 Broad St #501,
New York, NY 10004

Email:

Signature/Date:

C. To Be Completed by Purchaser

Name: Mendy Wertzberger

Address: PO Box 1259
Monroe NY 10949

Telephone: 845-587-5648

Email: Mendywr@gmail.com

Signature/ Date: 2/2/26

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19